

Galaxy[®]

M A G A Z I N E

DECEMBER 1960 50¢

ROUND- AND- ROUND TRIP

By H. B. Fyfe

FIGHTING SPIRIT

By Daniel F. Galouye

THE WRONG WORLD

By J. T. McIntosh

THE MOON WORM

By Willy Ley

and other
stories



GALAXY

K

DECEMBER 1960

GALAXY

DECEMBER 1960

Galaxy[®]

M A G A Z I N E

DECEMBER 1960 50¢

ROUND- AND- ROUND TRIP

By H. B. Fyfe

FIGHTING SPIRIT

By Daniel F. Galouye

THE WRONG WORLD

By J. T. McIntosh

THE MOON WORM

By Willy Ley

and other
stories



The Project Gutenberg eBook of Subject to Change

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Subject to Change

Author: Ron Goulart

Illustrator: Harman

Release date: March 26, 2016 [eBook #51571]

Most recently updated: October 23, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/51571

Credits: Produced by Greg Weeks, Mary Meehan and the Online
Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK SUBJECT TO
CHANGE ***

SUBJECT TO CHANGE

BY RON GOULART

Illustrated by HARMAN

**[Transcriber's Note: This etext was produced from
Galaxy Magazine December 1960.**

**Extensive research did not uncover any evidence that
the U.S. copyright on this publication was renewed.]**

Pendleton had been away from San Francisco over two months. The airport taxi left him at his place, where he showered and shaved. Then he decided he would walk, down through Chinatown and over into North Beach, to Beth's apartment.

It was a warm Saturday afternoon and he unbuttoned his dacron blazer a block or so into Chinatown. He smiled as he wandered by the bright restaurants and shops, the rows of ivory Buddhas in window after window. On one corner Pendleton stopped and took a deep breath, watching a scattering of tourists taking pictures of each other. Someone had lost a half dozen fortune cookies on the sidewalk and they crackled and spread fragments and fortunes as people passed.

While he was waiting for a signal to change, three small Chinese boys charged a fourth who had ducked around Pendleton. They all ran around the corner and Pendleton looked after them. There was an old curio and toy shop there. He went toward its streaked window, trying to identify the objects. Some kind of procession of tin soldiers made up the main display. The door of the shop opened and an old man with a flared white beard came out. His dark suit hung loose on him and his tie was coming untied as he hurried away.

The old man brushed by Pendleton, nudging him. "Many pardons," he said, cutting across the street. He ran downhill, weaving a little, and into an alley.



The bells over the toy shop door rattled again. "Stop, thief!" shouted the fat Chinese, who came running up to Pendleton. The man shouted again and stopped on the corner, his hands on his hips, looking.

Pendleton crossed the street and turned down the alley the old man had used. This would cut off a block of the way to Beth's. He had kept quiet about the thief because he didn't want to get involved in a lot of delaying questioning.

Halfway down the alley he saw an arm dangling out of a garbage can. Pendleton blinked and approached the shadowed area around the can. He flipped the lid up and the coat sleeve that had been tangled on the can edge slipped free and dropped into the can. If the old man was wandering around naked, they shouldn't have much trouble catching him.

Pendleton liked the pre-quake apartment house Beth lived in. In almost any weather he liked to see its narrow brown wood front waiting there in the middle of the block. He smiled as a big blue-gray gull flew low overhead and then circled up and away behind Beth's building. Pendleton took the rough steps in twos and threes and swung at Beth's bell. There was a folded note for him glued on her mail box lid with Scotch tape. It told him she might be delayed a bit and to get her keys from under the rubber-plant pot on the porch and let himself in. He did that, thinking again that Beth's notes always looked as though she wrote them on horseback.

Upstairs he dropped her keys on the small mantle over the small real fireplace. Her bedroom door was slightly open. Just as he noticed this, Beth called out to him.

"I hope that's you, Ben?" she said from her room.

"Where'll I put the ice, lady?" he said. "You're supposed to be out."

"Welcome back. I just got here and I had to change so I left the keys down there in case you got here while I was changing. How was New York?"

"Okay, but I'm glad I'm with the agency out here. How'd you get in without keys?" He sat down in the soft tan sofa-chair he'd given her.

"I have a key to the kitchen way. Is the show all right now?"

"I guess we fixed it for a while. How are you?"

"Fine. And, hey, I have a good part in Alex' new play. It just happened and I couldn't write."

"You have lousy handwriting, you know," Pendleton called. Grinning, he got out a cigarette and reached into his coat pocket for a book of matches. Something jabbed into the palm of his hand.

"It's because I'm so intense," Beth said, near her bedroom door.

Pendleton winced and pulled a small toy Chinese junk out of the pocket. The price stamp was still on the bottom of the boat, 25 cents. The old man must have dropped it in his pocket when he nudged him.

Beth came up behind him. "It's warm in here. Give me your coat. I have a whole new concept about making martinis. This fellow in Actors' Lab told me. You do it with Zen." Her hands rested on Pendleton's shoulders.

"I'll be damned," he said, rubbing his palm with the boat as he stood.

Beth slid her arms over his shoulders and locked her hands on his chest. "What's that, Ben?"

Pendleton turned around in her hold. He tapped her tanned nose with the toy boat and told her about it. "I suppose I should take it back," he said finally.

Beth laughed. "Makes you a receiver of stolen goods." She took the toy boat and walked to the fireplace. She put it next to her keys and turned to him. She was wearing a light blue dress with a flared skirt. No stockings, flat black shoes. She'd cut her blonde hair short since he'd seen her last. "Welcome back," she said, smiling.

A light wind was starting up, tapping windows with tree branches, as Pendleton let himself into Beth's darkening apartment. He flipped the light switch on and started for the tan sofa chair, jiggling the keys in his hand. The bedroom door slammed.

"You in there?" Pendleton called. Her note said she'd gone out for some forgotten groceries.

Pendleton opened the bedroom door and turned on the lights. The window beyond Beth's low, blue-covered bed was open and the wind was flapping the curtains against her dressing table. A strong flap caught a lipstick and flipped it into the thick rug.

Edging around the bed, Pendleton closed the window and picked up the lipstick. He left the bedroom door a bit open and went back to the chair.

There was a paper back by Eisenstein on the coffee table and he picked that up and read down the contents page.

The wind got stronger and parts of the old building creaked, first something down under him, then something way up and to the right. Now and then there would be a bang from out in back. Pendleton dropped the book and got down on his knees in front of the fireplace and kindled a fire. As the fire took hold, bright sparks popped out into the room.

Something started tapping on the window behind Pendleton's chair. At last, in a lull between creaking and banging, he became aware of a tapping. He looked at the window and the early night sky. The tapping went on.

There was a gray cat sitting on the sill outside. The cat was tangled up in an orange and blue bead necklace. "Lonely out there," Pendleton said. He didn't much like cats, but this one looked sad. He opened the window and the cat jumped in, the necklace falling free and clattering against the wall. "We'll see if maybe Beth's got something around to give to wandering cats." Pendleton reached out to pick up the cat. Sputtering, the animal raked at his fingers and dived between his legs.

Pendleton spun and saw the cat scoot through the open bedroom door. "Hey, you little bastard, you'll knock over things."

He was two steps from the door when it slammed and locked. Pendleton stopped, wondering how the animal had managed to bang into the door hard enough to close it. He didn't think the cat should stay in there and anyway Beth would want to get in when she got home. He'd pick the lock. Crouching, he reached for the knob. Something clicked and the door swung in. He recognized Beth's terry robe and he looked up and saw her face, very pale.

"Okay," she said. "I guess I was too cute with the key bits. Go away, Ben, and leave me alone. Please?"

"What's the matter?" He was still squatting and her stepping forward sent him over.

"Just go away, Ben. Please, now." She brushed by him and sat in a bucket chair, putting both bare feet down hard on the floor.

Ben got himself up. "You drunk?"

Beth brushed at her hair. "I thought if you were sitting out here and I showed up in the bedroom, you'd think I came in the back way. Or that I was already in there and just hadn't heard you." She bit her thumb. "Just another trick I wanted to try."

"What are you talking about?" He bent and scooped up the bead necklace.

"Go away. That's all."

"Well, why?" He twisted the string of beads around his knuckles. "Somebody else?"

"Yes. Alex." She smiled.

"Alex? That fruiter who runs the Actors' Lab." The string broke and beads splattered away from him. Three landed in the fire.

"Or maybe my Uncle Russ. Did you know we lived with him for three years when I was a kid and I was always having odd fevers and things? He had some kind of quack x-ray business."

Pendleton took Beth's shoulders. "You're sick, is that it?"

"No. Go away, Ben."

"Well, what is it?"

Beth sighed, annoyed. "You know about Method. You have to feel the parts, live them."

"Sure."

Beth shrugged her shoulders until Pendleton let go. "One weekend afternoon—oh, about two or three weeks after the agency sent you off—I was here trying to be an old lady. For an exercise at the Lab. And I was."

Pendleton blinked at her still pale fact. "That's swell, Beth. A guy likes to know what his fiancée is up to while he's away."

"I *was* an old lady." She stood with her body thrust almost against him. "See? I changed."

He backed a little. "How about a drink?"

"Don't you get it, Ben? How the hell do you think I just came in?"

"The back way." Pendleton decided to try a drink on her and then find out who her doctor was these days.

"I was the cat. Now you know about it and can go away, Ben." She let herself fall to the floor and she huddled there, crying.

"How long have you had this idea?" He knelt beside her, running one hand over her back.

"You know who put that silly damn boat in your pocket?" she asked.

"Sure. You were that little old man."

Beth rolled and sat up, her legs tangled in the robe. She took a deep breath.

"Listen, Ben. I got a kick out of changing into different kinds of people. It was a help in my work at the Actors' Lab. Then I got the idea it would be fun to try other things. Animals, chairs, tables. One rainy night I was a footstool until it was time to go to bed."

"I was a tea kettle as a boy. Stop kidding."

"I don't know, Ben. It gets sort of vacant all around when you're away somewhere. I had this feeling that I wanted to see if I could just step into a store or someplace and try to swipe something. Anything."

Pendleton found himself starting to shake. He put his arms around Beth. "That was you, then, taking junk from an old Chinese."

"I could change, you see, and take things as all sorts of odd characters. If I was spotted and followed, I'd try to duck in an alley or a doorway and change again. The clothes are extra. Sometimes I could hide clothes in a lot. Most of the time, though, I'd have to change into something new. A bird, a cat. Then I'd carry what I had stolen in my beak or around my neck." She laughed softly. "Once I copped an umbrella and changed into a big dog and went off with it in my mouth." She twisted slightly in his arms. "I'm sorry. It's all sort of odd and silly. I do it."



"Well, why?"

"I don't know."

"Beth?" He inched up, lifting her with him.

"Yes?" She let him sit her in the sofa chair.

"You have to go see somebody. You have to stop."

She stiffened. "If it was as simple as insanity, I would."

"Please, Beth." He wandered to the fireplace and threw in more wood.

"The stealing *does* bother me. I think the changing is good. I can use it to really go someplace in my acting career. Quit the secretary business altogether. I actually changed to an old woman for one of Alex's one-acters. He thought I'd just done a good job of makeup. I don't believe I want to simply stop, Ben."

"You have to!"

"Don't start shouting commands."

Pendleton sat across from her on the sofa. "Will you promise to start seeing somebody? Maybe I can find out about a good man. Promise you'll see him."

"You going to ask around? Why don't you do a TV spot? 'We are happy to announce that Beth Gershwin is daffy.'"

"Relax, Beth. You decide what you want to do. I won't talk to anybody."

Beth moved to the window. The wind had died. "I don't know, Ben."

"Let it rest. Let's have the drink." He came to her side.

"I think I'd like to be alone for a while."

"I'd like to stay."

"I'd like you to go. Please."

"Beth."

"Go on, Ben." She stared at him, then walked into her bedroom.

She didn't close the door and he followed.

Her robe was spread-eagled on the bed. Pendleton looked around the room. Before, there had been one carved stool at the vanity table. Now there were two.

Pendleton left the apartment and ran down the hall, taking short, shallow breaths. But he couldn't just leave her. He bit his lip and went back through the still open door.

"Come on, Beth. Don't be stubborn," he said into the bedroom, watching the two stools.

He waited an hour. Then he turned off the lights and started to leave. Going out this time, he stepped on one of the wooden beads and almost fell onto the coffee table.

Pendleton slammed Beth's door and went out into the clear night. If she could be stubborn, so could he.

It was almost two weeks before she called him to apologize. She'd got him at the agency. He didn't stay in his apartment much. He kept talking to himself if he did.

You could see the street from the little Italian restaurant they'd agreed to meet in. Pendleton sat at a round table close to the wide window and watched for Beth. There was a slight haze in the afternoon air and most of the secretaries that passed were coatless.

Beth started smiling a quarter of a block from him. She was in a light cotton dress, weaving in and out of the noontime pedestrians.

"Nice day," Pendleton said, standing.

Beth smiled and sat down. "I noticed that right off."

They ordered and Pendleton said, "How've you been?"

"Great." She clasped her hands together on the checkered table top. "You were right, Ben. I'm sorry I was mean."

Pendleton moved his glass of water three inches. "Good."

"I've started seeing a very highly recommended analyst. Things are starting to look up. I haven't even had an impulse to filch anything in days."

The food arrived. "It'll take time."

"I have a great part in Alex's next play. It's really a challenge. By Ionesco. Being able to change will help."

Pendleton set his fork down. "Huh?"

"I tried changing into the character last night. It came off fine."

"What are you seeing a psychiatrist for, then?" he asked, his voice low.

"So I won't steal things any more."

He held the edge of the table for a minute, not meeting her eyes. Finally he said, "I see. Well, that's fine, Beth. How've things been at work?"

Beth grinned and told him.

The days were turning cool and the trees had started scattering dry leaves into the wind. On a sharp weekend afternoon Pendleton was killing time in the produce district before driving over to Beth's.

There was a coffee shop open and Pendleton thought about crossing over for a cup of coffee. The whitewashed door of the place shot open and a fat woman with an orange-fringed shawl came out. She was carrying something wrapped up in a paper napkin. She glanced at Pendleton, hesitated a second and then went running off toward a closed warehouse. By the time she reached it, the short-order cook was on the street looking after her. He threw a gesture after her and went back inside.

Pendleton shivered once slightly. He started walking for his car and a block from it he found himself running. He got to Beth's place ahead of the approaching dusk.

The downstairs door wasn't locked, but Beth's apartment door didn't open when he tried it. Pendleton grunted, slapping his pockets for something to pick the lock with.

The door opened. Beth, in capris and a striped sweater, looked out at him, her head tilted slightly to one side. "Did I hear applause? You're early."

"You know why I'm here early." He pushed into the room. "I thought you were better. What the hell were you doing down there?"

"Where? What's the matter?" She backed across the rug to the fireplace. A small fire was going and she turned to warm her hands at it.

"I just saw you steal something from that diner. Silverware maybe. You want me to search the place?"

Facing him, her lips hardly parted, Beth said, "I should think you would trust me, being we love each other and all. I was rehearsing until a half hour ago and Alex dropped me off. I've been here since then."

Pendleton's hands fell to his sides. "Well, nothing I guess is wrong. I'm just jumpy. This changing thing bothers me."

Beth reached out and patted his arm. "It's okay, Ben?"

"Yeah." He sat down in the tan chair and looked up at her.

"Want to eat here tonight, by the fire? I'll have the Flying Something deliver food."

"Good. And send out for a bottle or two."

Beth bent and kissed him. "Trust me again?"

He brushed at her hair and nodded.

Pendleton dropped too much wood into the fireplace and a stick snapped out onto the rug. He gingerly picked up the stick and poked it back into the flames. He went back to the low sofa Beth was on. He found his glass in the dark and refilled it from the pitcher.

Beth reached out with one bare foot and stroked the side of his head. She had put on a dark blue dress with several stiff lace petticoats and whenever he tried to touch her she made crackling sounds.

"You're really a nice fellow," Beth said, finding his ear with her toe.

"So are you," he said, finishing his drink.

"Maybe we should go ahead and get married."

Ben agreed and poured fresh drinks.

"Ben?"

"Yeah?"

"I'm sorry." She was crying.

"What is it?"

"It *was* me this afternoon. I *have* been doing those things. I never went to any highly recommended man at all."

Pendleton felt tolerant. "So what? Things will work out somehow."

Beth sat up. "I can't stop it, Ben."

Pendleton thought he heard an odd quaver in her voice. "You're not onstage now, kid. Save the phony touches."

Her leg swung round, just missing his head, and she stood up. "That's your trouble. You're totally incapable of comprehending."

"I comprehend you. You're loony and a liar."

Beth slapped him. "It'll be simpler if I stop being me!"

Pendleton had somehow gotten his arm stuck under the sofa. "Take it easy."

He was aware of a rustling sound and when he got loose and came up he saw Beth naked by the window for an instant. As he looked she changed. Then there were two tan sofa chairs in the room.

Pendleton called Beth's name over and over, but she wouldn't come back. It got cold in the apartment after a time and he threw all the wood he could find in the fire. He crawled over to the martini pitcher and drank from it. He noticed that some sticks had fallen out and landed in the tangle of petticoats Beth had left and he smiled at the disorder of everything and put his head back against the sofa.

Petticoats crackling woke him. Even before he got his head up very high in the room, he was coughing. The room was turning bright, sparkling orange.

"Beth!" he said. "Beth!"

There were still the two tan sofa chairs.

"Beth, sober up now! Come on, change! We've got to get out!"

Nothing happened. Pendleton looked at the chairs a moment. The one on the left. He grabbed it up and wavered to the apartment door. To make sure, he'd have to come up for the other one.

For several minutes it seemed the chair would stay wedged in the doorway. It came free finally and he went back with it and tumbled and twisted down the stairs.

A siren met him in the cold night outside. The engines were already there. The firemen were heading for the building.

Spray fell back across the street where Pendleton took the chair. "Beth, please," he said in a low voice. "Change now." He tried to go get the other chair, to be sure, but they wouldn't let him.

He fell into the one he'd picked and began crying softly. The sirens stopped. Before he let the ambulance people look at him, he insisted that the chair be looked after.

No trace of Beth was found and Pendleton couldn't explain what had happened. After they let him go, he had the chair sent to his apartment.

He put it very carefully in the living room by the liquor cabinet and sat down near it to wait.

*** END OF THE PROJECT GUTENBERG EBOOK SUBJECT TO
CHANGE ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.